

25NNCV00310 25NNCV00310

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#13 - STATE FARM MUTUAL AUTOMOBILE INSURANCE COMPANY vs VARDAN SARGSYAN, et al.

MOTION FOR SUMMARY JUDGMENT

State Farm has presented substantial evidence questioning the reported circumstances of the collision. Its expert's opinions and the vehicle data support findings that the collision was deliberately caused and that material aspects of the claim were falsely presented. State Farm's reconstruction expert reviewed vehicle photographs, repair estimates, Bosch crash-data records, claim documents, and a physical inspection of the Lexus. (Posner Decl., Exh. E.) The expert concluded that the Lexus slowed from approximately 42 miles per hour to approximately 12 miles per hour before impact and that the recorded braking and steering inputs described a "deliberate controlled maneuver to intentionally collide with another vehicle at a safe speed to avoid injury." (Posner Decl., Exh. E, p. 13.) The expert further concluded that the reported collision scenario was inconsistent with the vehicle data, the other vehicle was likely stationary, and evidence had been intentionally manufactured to support the claim.

The record also contains Sargsyan's contrary account. Sargsyan denied intentionally driving the Lexus into the other vehicle and stated that the other vehicle entered his lane and struck the Lexus. (Posner Decl., Exh. C, Response to RFA no. 26.) Sargsyan admitted the accuracy of the Lexus data, acknowledged inconsistencies between his testimony and the reconstruction report, and admitted that he possessed no documents refuting the report. Narrative denials unsupported by objective evidence are insufficient to create a triable issue, particularly when confronted with contradictory, objective evidence or binding admissions. (See *Michelman v. Frye* (1965) 238 Cal.App.2d 698, 702 [opposing declaration which solely denied allegations on the grounds of lack of information was wholly insufficient to raise triable issue in hearing on motion for summary judgment].)

The Court, therefore, determines there are no triable issues of material fact and grants summary judgment to Plaintiff State Farm.